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driving a 2020 Kenworth T680 semi-trailer truck merged into Plaintiff's lane of traffic rear-ending the vehicle Plaintiff was occupying. The vehicle would be severely totaled pushing the whole trunk into the backseat.

6. At said time and place, the Defendant, Aganeta Bergen, was careless and negligent in one or more of the following respects:

- a. The Defendant carelessly and negligently failed to maintain a proper lookout ahead of her vehicle;
- b. The Defendant carelessly and negligently failed to keep her vehicle under proper control;
- c. The Defendant failed to exercise reasonable care to alter or divert the course of her automobile so as to avoid a collision;
- d. The Defendant failed to pay proper attention to the roadway ahead of her and to the side of her;
- e. The Defendant carelessly and negligently failed to apply the brakes of her vehicle in time to avoid an accident; and,
- f. The Defendant carelessly and negligently operated her vehicle at an unreasonable rate of speed under the circumstances.

COUNT I – RESPONDEAT SUPERIOR LIABILITY
(Defendant, Grace Transport, Inc.)

Plaintiff hereby incorporates paragraphs 1-6 of this Complaint fully as if the allegations were set forth fully herein.

7. The injuries, harm and damages were incurred by the Plaintiff as a result of the use of the vehicle by Defendant, Aganeta Bergen, in a negligent and reckless manner, which Defendant, Grace Transport, Inc., knew or should have known, was likely and involved an unreasonable risk of harm to others while driving the vehicle.

8. Defendant, Grace Transport, Inc., as the employer of Defendant, Aganeta Bergen, who was in the course and scope of her employment with Defendant, Grace Transport, Inc., were negligent in her operation of said vehicle.

9. Defendant, Grace Transport, Inc., as the employer, is responsible for the negligent acts and/or omissions of Defendant, Aganeta Bergen, for causing said accident under the doctrine of respondeat superior.

COUNT II – NEGLIGENT ENTRUSTMENT
(Defendant, Grace Transport, Inc.)

Plaintiff hereby incorporates paragraphs 1-9 of this Complaint fully as if the allegations were set forth fully herein.

10. The injuries, harm and damages were incurred by the Plaintiff as a result of the use of the vehicle by Defendant, Aganeta Bergen, in a negligent and reckless manner, which Defendant, Grace Transport, Inc., knew or should have known, was likely and involved an unreasonable risk of harm to others while driving a truck.

11. Defendant, Grace Transport, Inc., as the employer of Defendant, Aganeta Bergen, had the right to permit and power to prohibit the use of the vehicle by Defendant, Aganeta Bergen.

12. As a direct result of Defendant, Grace Transport, Inc., negligently entrusting Defendant, Aganeta Bergen, who operated said vehicle owned by Defendant in a negligent and reckless manner, the Plaintiff, without contributory negligence, did suffer the injuries, damages and harm.

13. As a direct and proximate result of the collision, the Plaintiff, Roxanne E. Vasquez, sustained severe and permanent injuries as a result of this incident, including but not limited to paralysis below the neck.

14. As a result of her injuries and their effects, the Plaintiff, Roxanne E. Vasquez, in order to treat her injuries and to lessen her pain and suffering, has been required to engage the services of hospitals,

physicians, radiologists and therapists for medical care, x-rays, physical therapy and medicines and has incurred medical bills for such treatment. Plaintiff has been in the hospital since the date of the accident.

15. As a direct and proximate result of the collision, the Plaintiff, Roxanne E. Vasquez, has incurred lost wages.

16. As a result of the injuries sustained in this collision, the Plaintiff's quality of life has been diminished indefinitely.

17. As a direct and proximate result of the carelessness and negligence of the Defendants as aforesaid, the Plaintiff has been damaged.

WHEREFORE, the Plaintiff prays for judgment against the Defendants in an amount commensurate with her injuries and damages, for attorney's fees, for the costs of this action, for trial by jury, and for any and all other relief just and proper in the premises.

Respectfully submitted,

CROSSEN LAW FIRM, LLC

/s/Trevor J. Crossen

Trevor J. Crossen

Attorney No. 18592-49

Attorney for Plaintiff